

Lalta Prasad Pathrol v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 26 November 2019 · Writ-C No. 37842 of 2019 · Writ - C No. 37842 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5; coercive action stayed 40 days.**

HEADNOTE

A Division Bench declined to entertain a writ challenging an electricity demand citation of Rs. 2,81,381. A dispute as to correctness of the bill is to be pursued under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The consumer may approach the appropriate authority within 10 days; that authority is to decide by a speaking order after hearing within 30 days, with 40 days' protection from coercive action.

FACTUAL SUMMARY

Lalta Prasad Pathrol filed a writ petition in the Allahabad High Court seeking to quash a citation dated 30 September 2019 demanding Rs. 2,81,381 plus collection charges towards electricity dues. He also sought mandamus to correct the disputed bill, drop collection charges, accept the dues in easy instalments, and decide his representation. After hearing counsel for the petitioner and the Electricity Department, the Court treated the controversy as a dispute over the correctness of the bill.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness-statutory-remedy

HOLDING

Where the consumer disputes the correctness of an electricity bill and a recovery citation, the statutory objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the proper remedy and a writ petition will not be entertained. If the consumer approaches the appropriate authority within 10 days, the authority is to decide the application by a speaking order after hearing within 30 days; coercive action is stayed for 40 days. ¶ 3-7

PRINCIPLE TAGS

bill-correctness-under-clause-6.5-not-cgrf-or-ombudsman Writ challenging a demand citation on bill-correctness grounds was not entertained; the consumer was directed to the Clause 6.5 statutory objection. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CITATION DATED 30.09.2019 OF RS. 2,81,381 AND COLLECTION CHARGES WAS ILLEGAL, AND WHETHER DUES SHOULD BE ACCEPTED IN INSTALMENTS

Merits of the bill, collection charges and instalments left to the Clause 6.5 authority. ¶ 3-6